Darden Group | real | POWERED BY PLACE

GULF COAST · CONDO BUYERS

KEYWORD
CONDO

The Florida condo buyer checklist: inspections, reserves, and what your dues really buy

Florida now requires older condo buildings to prove they're sound and funded. That protects you, and it can also mean special assessments. Here's how to check a building before you commit.

From Gene Darden, Marine veteran · The Darden Group · 2,000+ homes sold with my team

Step 1: Does the building fall under the new rules?

Both the milestone inspection and the structural integrity reserve study apply to residential condo buildings **three habitable stories or more** (Fla. Stat. §553.899(3); §718.112(2)(g)).

- ☐ How many habitable stories? _____
- ☐ Year of the certificate of occupancy? _____ (the milestone clock runs from it)

Step 2: The milestone inspection (§553.899)

- **When:** by Dec. 31 of the year the building turns **30**, then **every 10 years**. The local building department can move that to **25 years** for buildings near salt water.
- **Who:** a Florida-licensed architect or engineer.
- **Phase one** is a visual inspection. **Phase two** (which can include testing) is required only if phase one finds substantial structural deterioration.
- The association must send every owner the inspector's summary **within 45 days** of getting the report, and post it on the property.
- After a phase two report, repairs must **start within 365 days**.

Ask: Has it been done? Phase one only, or phase two too? What repairs were recommended, are they scheduled, and how are they being paid for?

Step 3: The structural integrity reserve study (§718.112(2)(g))

Required at least **every 10 years**. It covers the **roof, structure, fireproofing and fire protection, plumbing, electrical, waterproofing and exterior painting, windows and exterior doors**, plus any other item over $25,000 (or the inflation-adjusted amount) whose failure would hurt those items. It must give each item's remaining useful life, replacement cost and a reserve funding plan.

> **THE RULE CHANGE THAT MATTERS MOST**
>
> For budgets adopted on or after **Dec. 31, 2024**, owners of an association that must have a SIRS **can't vote to skip or reduce reserves** for those items, and **can't use those reserve funds for anything else** (§718.112(2)(f)). Waiving reserves to keep dues low isn't an option anymore. If dues look cheap for an older high-rise, find out why.

Ask: Date of the last SIRS? What annual reserve did it recommend, and what does the current budget actually fund? Is a special assessment, loan or line of credit planned to close a gap?

Step 4: What do the dues actually cover?

Every association budget must also carry reserves for **roof replacement, building painting and pavement resurfacing**, plus any item over $25,000 (§718.112(2)(f)). Beyond that, it's building by building. Fill this in from the MLS sheet and the budget:

Item	Included?	Item	Included?
Master insurance policy	☐	Water / sewer	☐
Trash	☐	Pest control	☐
Cable / internet	☐	Pool / fitness / amenities	☐
Master association fee	☐	Management / accounting	☐
Reserves (per SIRS)	☐	Elevator / security	☐

Dues: $_____ per _____ = $_____ a month. Then add your own unit (HO-6) policy, flood if you need it, and taxes. That's your real monthly cost.

WORKED EXAMPLE: MARINA LANDING #1406, PANAMA CITY BEACH

My listing: a 14-story concrete building, built 2007. The MLS lists dues of **$2,928 per quarter (about $976/month)**, and "Association Fees Include": accounting, BBQ, fitness center, insurance, master association, pest control, pool, sewer, trash and water. Rentals: **no vacation rentals, 6-month minimum lease.** It's on VA's approved-condo list. $579,000 · 3 bed / 3 bath · MLS 795048. Even with a clean list like that, I'd still read the master policy summary to see exactly what "insurance" covers and what an owner's HO-6 has to pick up.

Step 5: Rules and financing

- ☐ Rental rules: short-term rentals allowed? Minimum lease? Approval or registration?
- ☐ Pets, parking spaces, vehicles, renovation rules.
- ☐ VA or FHA buyer: is the project approved?
- ☐ Any pending special assessment, lawsuit or open violation? (The estoppel certificate lists assessments due and open violations; §718.116(8).)

Comment **DOCS** for the list of documents I ask for on every Gulf condo.

SOURCES

- Fla. Stat. §553.899 (mandatory milestone inspections: 3+ habitable stories, 30 years / 25 near salt water, every 10 years, phases, 45-day owner summary, 365-day repair start): flsenate.gov/Laws/Statutes/2026/553.899
- Fla. Stat. §718.112(2)(f) (budget reserves; no waiver or diversion for SIRS items for budgets adopted on/after Dec. 31, 2024) and (2)(g) (SIRS contents, every 10 years): flsenate.gov/Laws/Statutes/2026/718.112
- Fla. Stat. §718.116(8) (estoppel certificate). All 2026 Florida Statutes, accessed Oct 17, 2026.
- Listing: Gene Darden's fact sheet for 6422 W Hwy 98 #1406 (MLS 795048 sheet: dues, fee inclusions, rental rules, construction, built 2007); Active at $579,000 and VA approved-condo list confirmed by Gene 10/17/2026.

General information, not legal, insurance or lending advice. Florida condominium law changed in 2024 and 2025; the current statutes, your contract and your closing attorney or title agent control. Florida law only; Alabama condos follow different rules.

Darden Group | real | POWERED BY PLACE
EQUAL HOUSING OPPORTUNITY